

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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REGINALD DOZIER,

Plaintiff(s),

v.

**COMPLAINT &
JURY DEMAND**

THE CITY OF NEW YORK,
NEW YORK CITY POLICE LIEUTENANT
JOHN ORELLANA, 44th Precinct,
NEW YORK CITY POLICE OFFICER
CHRISTIAN FLORES, Shield # 00381,
44TH Precinct,
NEW YORK CITY POLICE OFFICER
BENITEZ, 44th Precinct,
NEW YORK CITY POLICE OFFICER JOHN DOE
44th Precinct,
NEW YORK CITY POLICE OFFICER
VANDEREER, 44th Precinct,
Defendant(s).

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PRELIMINARY STATEMENT

1. This is a Civil Rights action in which Plaintiff, REGINALD DOZIER, seeks redress for the Defendant's violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. 1981 and 1983 and of the rights secured by the Fourth Amendment, and by the Equal Protection Clauses of the Fourteenth Amendment to the United States Constitution and/or rights secured by under the Laws and Constitution of the State of New York.

JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. Sections 1331, 1343(3), this being an action seeking redress for the violation of Plaintiff's Constitutional and Civil Rights. The amount

of damages in controversy exceeds Seventy Five Thousand (\$75,000.00) Dollars, exclusive of interest and costs.

3. The Plaintiff's claim for declaratory and injunctive relief is authorized by 28 U.S.C. sections 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

4. The Plaintiff further invokes this Court's pendant jurisdiction, pursuant to 28 U.S.C. Section 1367(a), over any and all State claims and as against all parties that are so related to claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

5. The Plaintiff demands a trial by jury on each and every one of the claims pleaded herein.

VENUE

6. Venue is proper for the United States District Court of the Southern District of New York pursuant to 28 U.S.C. Sections 1391 (a), (b) and (c).

PARTIES

7. Plaintiff, REGINALD DOZIER is a United States Citizen and resident of the United States, and is and at all times relevant herein a resident of the State of New York.

8. Defendant NEW YORK CITY POLICE LIEUTENANT JOHN ORELLANA, upon information and belief of the 44th Precinct, is and at all times relevant, an Officer and employee/agent of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendant LIEUTENANT ORELLANA is sued individually and in his official capacity. At all times relevant Defendant LIEUTENANT ORELLANA was acting under the color of State Law in the course and scope of his duties and functions as agent,

servant, employee and Officer of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of his lawful duties. Defendant LIEUTENANT ORELLANA was acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in him as police officer, agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, and incidental to the lawful pursuit of his duties as officer, employee and agent of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

9. Defendants NEW YORK CITY POLICE OFFICER CHRISTIAN FLORES, Shield Number 00381, NEW YORK CITY POLICE OFFICERS BENITEZ, VANDEREEP and JOHN DOE, also upon information and belief, of the 44th Precinct, are, and at all times relevant, Officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendant Officers FLORES, BENITEZ, VANDEREEP and DOE are sued individually and in their official capacity. At all times relevant, Defendant Officers FLORES, BENITEZ, VANDEREEP and DOE, were acting under the color of State Law in the course and scope of their duties and functions as agents, servants, employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful function in the course of their duties. Defendant Officers FLORES, BENITEZ, VANDEREEP and DOE were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

YORK and incidental to their lawful duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

10. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department and the employment and training of Police Officers as said risk attaches to the public consumers of the services provided by Defendant CITY OF NEW YORK through THE NEW YORK CITY POLICE DEPARTMENT.

11. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers.

STATEMENT OF FACTS

First Incident

12. On December 2, 2009 at approximately 8:50 p.m. Plaintiff, who is a resident of Bronx County, was inside the building known as 1380 University Avenue in the County of the Bronx. The Plaintiff was with two friends, one of whom, Damien Harvey, lived in Apartment 11G in the building. The Plaintiff and his friends were waiting for the elevator when three uniformed members of the New York City Police Department, among whom were named Defendant Officers ORELLANA and BENITEZ, approached them and ordered the Plaintiff and his

friends to sit down. The Defendant Officers asked the Plaintiff and the other two individuals if they lived in the building, whereupon the Plaintiff and his friend Eddie stated that they did not live in the building. Mr. Harvey stated that he lived in the building. Defendant NEW YORK CITY POLICE LIEUTENANT ORELLANA then asked all three individuals for identification. After approximately ten minutes Defendant ORELLANA came back and stated in sum and substance to the other two uniformed officers “86 those two”, referring to Plaintiff’s friends. When the Plaintiff asked Defendant ORELLANA why he was being arrested Defendant ORELLANA stated in sum and substance: “warrants”, whereupon the Plaintiff explained to Defendant ORELLANA that the Plaintiff had been arrested by members of the New York City Police Department on two separate occasions concerning the alleged warrants, and that in March 2008 members of the New York City Police Department, in possession of a picture of the wanted individual, came to the Plaintiff’s residence and had displayed the picture of the wanted individual to the Plaintiff and were satisfied that the individual wanted was not the Plaintiff and that the Plaintiff did not have any outstanding warrants. Upon hearing this explanation from the Plaintiff, Defendant ORELLANA’S response was, in sum and substance, “too bad”. The Plaintiff was then subjected to a search of his person and placed under arrest by Defendant NEW YORK CTY POLICE OFFICER CHRISTIAN FLORES, charged with Criminal Trespass in the Third Degree (New York Penal Law Section 140.10). The Plaintiff was placed in a van and transported to the 44th

Precinct, where the Plaintiff was subjected to a second search of his person by members of the New York City Police Department, fingerprinted and photographed. The Plaintiff was subsequently transported from the 44th Precinct to Central Booking, where he was subjected to a third search of his person and photographed by members of THE NEW YORK CITY POLICE DEPARTMENT. The Plaintiff was kept at Central Booking until December 4, 2009, without ever seeing a lawyer. The Plaintiff was eventually brought before a Judge of the Criminal Court in Bronx County, who informed the Plaintiff that there were no warrants outstanding, and that the charged summons alleging that the Plaintiff was drinking alcohol on the date of December 2, 2009 inside of the building known as 1380 University Avenue in the Bronx, issued by Defendant Officer BENITEZ was being dismissed because Defendant Officer BENITEZ did not file the summons with the Court. The Court then instructed the Plaintiff that he was free to leave. At the point of his release, the Plaintiff had been held in the custody of the NEW YORK CITY POLICE DEPARTMENT for approximately forty three hours. The Plaintiff subsequently learned that Defendant Lieutenant ORELLANA and Defendant Officer CHRISTIAN FLORES had falsely charged the Plaintiff with the crime of Criminal Trespass (New York Penal Law Section 140.15). The charges levied by Defendants LIEUTENANT ORELLANA and OFFICER FLORES were declined prosecution by the BRONX DISTRICT ATTORNEY'S OFFICE due to the presence of the Plaintiff's friend, who resided in the building and was with the Plaintiff at the time of the Plaintiff's arrest,

indicating that the Plaintiff had permission and authority to be inside the location.

Second Incident

13. On June 16, 2009 at approximately 1:00 a.m. the Plaintiff exited his residence, located at 1435 University Avenue in Bronx County. Defendant Officer JOHN DOE, one of three members of the NEW YORK CITY POLICE DEPARTMENT sitting in a marked police van, ordered the Plaintiff to come over to the van, whereupon Defendant Officer DOE asked the Plaintiff what was in the bag the Defendant was holding. When the Plaintiff responded that a beer was in the bag, all three officers exited the van and Defendant Officer DOE proceeded to place the Plaintiff's hands on the van. Defendant Officer DOE proceeded to search the Plaintiff. At no time did the any of the named Defendant Officers inspect the bag or its contents to determine whether the beer in the bag was open. Defendant Officer DOE then asked the Plaintiff if he had any outstanding warrants. The Plaintiff proceeded to explain to the Defendants Officers VANDEREER and DOE that an individual with the Plaintiff's name and a similar date of birth did in fact have two outstanding felony warrants. The Plaintiff went on to explain that members of the New York City Police Department had detained the Plaintiff in April 2009 and had been to the Plaintiff's residence, located at 1435 University Avenue, in March 2008 with a photograph of the individual wanted for the outstanding warrants, and the officers determined that the

Plaintiff was not the individual wanted for the outstanding warrants. The Plaintiff then asked Defendant Officer VANDEREER to run the Plaintiff's full name, whereupon, upon information and belief, the third officer, not Defendant Officers DOE or VANDEREER, proceeded to run the Plaintiff's full name. The Plaintiff then heard the officer running his name say in sum and substance "93", whereafter Defendant Officer VANDEREER placed the Plaintiff in handcuffs and told the Plaintiff in sum and substance, "don't worry, once your prints come back if it's not you hopefully you'll come home tonight." Subsequently the Plaintiff was brought to the 44th Precinct where he was detained for approximately fifteen hours prior to being transported to Central Booking where the Plaintiff was arraigned on the Penal Law charge of Trespassing (New York Penal Law Section 140.15). At his arraignment it was determined that the Plaintiff did not have any warrants outstanding.

FIRST FEDERAL CLAIM

Violation of the Rights Secured by Section 42 U.S.C. 1983 and the Fourteenth Amendment to the United States Constitution-False Arrest

14. Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Thirteen (13) as if fully set forth herein.

15. Upon information and belief, the conduct of Defendant NEW YORK CITY POLICE LIEUTENANT JOHN ORELLANA acting under color of State Law, violated Section 42 U.S.C.

1983 by unlawfully arresting Plaintiff without probable cause.

16. That the actions of Defendant Police Lieutenant ORELLANA, occurred in and during the course and scope of his duties and functions as a New York City Police Officer, and while acting as an agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND FEDERAL CLAIM

Violation of Rights Secured by Section 42 U.S.C. 1983 and the Fourteenth Amendment to the United States Constitution-False Arrest

17. Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Sixteen (16) as if fully set forth herein.

18. That upon information and belief, the conduct of Defendant Police Officer CHRISTIAN FLORES, acting under the color of State Law, violated section 42 U.S.C. 1983 by unlawfully arresting the Plaintiff without probable cause.

19. That the actions of Defendant Police Officer CHRISTIAN FLORES, occurred in and during the course and scope of his duties and functions as a New York City Police Officer, and while acting as agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD FEDERAL CLAIM

Violation of Rights Secured by Section 42 U.S.C 1983-Malicious Prosecution

20. Plaintiff incorporates by reference the allegations set forth in Paragraphs One (1) through Nineteen (19) as if fully set forth herein.

21. That upon information and belief, the conduct of Defendant NEW YORK CITY

POLICE OFFICER LIEUTENANT JOHN ORELLANA, acting under color of State Law, violated Section 42 U.S.C. 1983 by falsely and maliciously charging Plaintiff with the commission of a criminal offense, namely Trespassing in the Third Degree (New York Penal Law Section 140.10), without basis in law or fact.

22. As a consequence of the actions of Defendant NEW YORK CITY POLICE LIEUTENANT ORELLANA, Plaintiff was subjected to lengthened period of detention while the merits of the Defendant's criminal allegations against the Plaintiff were determined by members of the Bronx District Attorney's Office, causing Plaintiff to suffer fear of repetition of such unlawful conduct by members of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

FOURTH FEDERAL CLAIM

Violation of the Rights secured by Section 42 U.S.C. 1983-Malicious Prosecution

23. Plaintiff incorporates by reference the allegations set forth in Paragraphs One (1) through Twenty Two (22) as if fully set forth herein.

24. That upon information and belief, the conduct of Defendant NEW YORK CITY POLICE OFFICER CHRISTIAN FLORES, acting under color of State Law, violated Section 42 U.S.C. 1983 by falsely and maliciously charging the Plaintiff with the commission of a criminal offense, namely Trespassing in the Third Degree (New York Penal Law Section 140.10) without basis in law or fact.

25. As a consequence of the actions of Defendant New York City Police Officer CHRISTIAN FLORES, Plaintiff was subjected to a lengthened period of detention while the merits of the Defendant's allegations against the Plaintiff were determined by members of the Bronx

District Attorney's Office, causing Plaintiff to suffer fear of repetition of such unlawful conduct by members of the NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

FIFTH FEDERAL CAUSE OF ACTION

Violation of Rights secured by Section 42 U.S.C. 1983-Malicious Prosecution

26. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Twenty Five (25) as if fully set forth herein.

27. That upon information and belief, the conduct of Defendant NEW YORK CITY POLICE OFFICER BENITEZ, acting under color of State Law, violated Section 42 U.S.C. 1983 by falsely and maliciously charging the Plaintiff with the commission of a violation of the New York City Administrative Code, namely Section 10-125(2)(b) Open Container of Alcohol, without basis in law or fact.

28. As a consequence of the actions of Defendant New York City Police Officer BENITEZ, Plaintiff suffers fear of repetition of such unlawful conduct by members of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

FIRST STATE LAW CLAIM

29. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Eight (28) as if fully set forth herein.

30. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE LIEUTENANT JOHN ORELLANA, resulted in the false arrest, detention, photographs and searches of Plaintiff,

and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND STATE LAW CLAIM

31. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty (30) as if fully set forth herein.

32. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE OFFICER JOHN DOE resulted in the detention of Plaintiff based upon the erroneous determination that the Plaintiff had outstanding felony warrants, when in fact the Plaintiff did not, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD STATE LAW CLAIM

33. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Two (32) as if fully set forth herein.

34. That the actions of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE OFFICER VANDEREEP resulted in the detention of Plaintiff based upon the erroneous determination that the Plaintiff had outstanding warrants, when in fact the Plaintiff did not, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTH STATE LAW CLAIM

35. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Four (34) as if fully stated herein.

36. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE LIEUTENANT JOHN

ORELLANA, of the 44th Precinct, which resulted in the false arrest, detention, photographs and searches of Plaintiff, public humiliation and embarrassment, emotional distress and the incurrence of monetary damages, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FIFTH STATE LAW CLAIM

37. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Six (36) as if fully set forth herein.

38. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendant NEW YORK CITY POLICE OFFICER CHRISTIAN FLORES which resulted in emotional distress upon Plaintiff, causing Plaintiff to suffer, severe anxiety, public humiliation and embarrassment, and incurrence of monetary damages.

SIXTH STATE LAW CLAIM

39. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Eight (38) as if fully set forth herein.

40. That the Defendant CITY OF NEW YORK, through the doctrine of Respondeat Superior, is liable for the actions of Defendants NEW YORK CITY POLICE OFFICERS VANDEREEF and JOHN DOE , which resulted in the, infliction of emotional distress, public humiliation and embarrassment upon Plaintiff.

SEVENTH STATE LAW CLAIM

41. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty (40) as if fully set forth herein.

42. That the Defendant CITY OF NEW YORK, through its municipal agency, THE NEW YORK CITY POLICE DEPARTMENT, negligently maintained in its data base outstanding felony

warrants for the Plaintiff's arrest, when in fact no such warrants existed, causing the aforementioned and hereinafter mentioned harm to the Plaintiff.

WHEREFORE, the Plaintiff demands the following relief jointly and severably against all Defendants:

1. Compensatory Damages for Plaintiff.
2. Punitive Damages against Defendant New York City Police Lieutenant JOHN ORELLANA, of the 44th Precinct.
3. Punitive Damages against Defendants, New York City Police Officers CHRISTIAN FLORES, BENITEZ, VANDEREER and JOHN DOE of the 44th Precinct.
4. A Court Order pursuant to 42 U.S.C. 1983 that the Plaintiff is entitled to costs of the instant action, and Attorney's fees.
5. Such other and further relief as the Court may deem necessary and appropriate, including declaratory relief.

Dated: June 14, 2012

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Filename: Reginald Dozier_1983_Complaint
Directory: C:\Documents and Settings\Victor M. Brown\My Documents
Template: C:\Documents and Settings\Victor M. Brown\Application Data\Microsoft\Templates\Normal.dot
Title: UNITED STATES DISTRICT COURT
Subject:
Author: Victor Brown
Keywords:
Comments:
Creation Date: 3/27/2012 12:46:00 PM
Change Number: 21
Last Saved On: 6/14/2012 1:17:00 PM
Last Saved By: Victor Brown
Total Editing Time: 601 Minutes
Last Printed On: 6/14/2012 1:18:00 PM
As of Last Complete Printing
Number of Pages: 15
Number of Words: 3,406 (approx.)
Number of Characters: 18,058 (approx.)